

VOLUME IV, No. 1.

JANUARY, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

A MONTHLY PERIODICAL, PUBLISHED BY THE
NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

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THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

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Committee.

WHY DELAWARE USE THE WHIPPING POST^{*}

BY CHARLES R. MILLER, GOVERNOR OF DELAWARE

[Delaware has received in recent months national attention because a member of Congress asked in Congress whether the use of the whipping post in Delaware cannot be declared contrary to the provisions of the national constitution. To flog prisoners seems to most people a relic of barbarism. Is it justified? Do you agree with the Governor of Delaware?]

Delaware has whipped criminals of certain types since 1656, and will continue to whip them until the statutes under which corporal punishment is indicted shall be repealed.

Congress cannot, and certainly will not, interfere in the exercise of proper authority under the law, and as the whipping post is an integral part of the criminal law of Delaware every law officer must consent to its use regardless of any personal views he may have in the matter. Hysterical women, weak men, bullies, cranks and blackguards in all parts of the country have written to me demanding that I set aside the law and prohibit whippings for crime in Delaware. These good souls give no heed to the fact that the whippings are quite as legal in Delaware as imprisonment. Their demands amount to anarchy, so far as law enforcement goes. They cry, "Down with the law!" without knowing whereof they speak.

I want every criminal, every sharper and every moral leper to know that if he comes to Delaware and violates the law he will not only serve a long term in our none too comfortable jails, but that he will be whipped in public on his bare back before he enters his cell. I wish this fact could be spread to the uttermost corners of the country.

Delaware wants no undesirable citizen. This State offers nothing but the whip and the workhouse for the gunmen, white slavers, panders, highwaymen and common thieves which people the underworld of some of our larger cities and who seem to get a certain amount of applause for their more daring performances from the same type of people who demand that I shall set aside a fundamental law of my State and defy the decrees of our High Court.

* From several newspapers.

Delaware houses one-half of her population in the city of Wilmington. All the rest of the State is strictly rural. Our people are of the soil. They are typical farmers—plain, wholesome, God-fearing people who obey the law and who punish crime with severity. We have neither the means nor the machinery with which to patrol our rural districts with armed officers. It follows, then, that we must have laws carrying severe penalties and rigidly enforce them.

Half the people in Delaware south of Wilmington never lock their doors at night, window fasteners are uncommon, and thought of burglars is totally absent from the minds of our people. Once in a long while some half-drunken loon will enter a house at night. When he is not kicked out as a mere intruder he is locked up, tried, convicted and whipped according to law, and then locked up long enough to think it over himself and to deter all others from a like offense.

Those who criticise the whipping post adversely overlook the fact that Delaware is the broad highway between four chief American cities.

Our unthinking critics include those who do not know that time or the loss of time means nothing at all to a very large proportion of our population. A day, or a week, or a month, more or less, costs a low-grade negro nothing at all in opportunity or in money. The native negroes of Delaware know their place and make no trouble. They are far above the average in habits and in intelligence, but we have a floating negro population which is definitely bad, and we must safeguard our people, white and black, against those who come from all parts of the Shore country to the canneries, work a few weeks or months and then pass on, only to give place to another lot just as bad, or even worse.

The negro with city habits is a worse proposition than the farm trained hand, who is usually law-abiding and useful. Delaware can handle her own negroes with little or no force, but the passing throng of bad men needs attention, and they file by with eyes front on the whipping posts. Cells mean nothing at all to such men, white or black.

Delaware is absolutely free from all forms of white slavery. This particular form of crime is punished here without recourse to the Mann Act

or aid from the Federal authorities. Did the whipping post do naught else but keep cadets out of Delaware it proves its eternal value here. In every other State in the Union in which there is a large city the white slave problem comes up with a degree of regularity. The same people who condemn the whipping post wring their hands and wonder what to do about the cadets and their wretched victims. Delaware answers, "Whip the cadet!"

Years ago a gang of desperadoes undertook to rob a Wilmington bank. They tunneled under the building, and would have carried off \$500,000 in negotiable securities but for the suspicions of an alert watchman. They were arrested, and on trial paid one attorney a very large fee solely to the end that they might be saved from the public whipping. The late great Chief Justice Lore sentenced them to long terms in prison and to the utmost limit of the law as to pillory and lashes.

There has never been a bank robbery attempted in Delaware from that day to this by professional burglars. These men were bank robbers of the first grade; the same men who managed one of the sensational robberies in New York—the Metropolitan Bank, I think. That type of criminal never considers Delaware now for a second.

A prison term means nothing at all to him, but he would never dare show his face in his usual haunts after the lash fell on his bare back in a Delaware jail.

All prison reformers and all humanitarians agree that the object of all punishment is to prevent crime—remotely to cure the criminal. We are not discussing the cure of criminals. We are discussing the whipping post per se, and I submit that the whipping post has prevented two of the most terrible of all crimes short of murder—white slavery and burglary. There is a grave doubt in my mind if there has been a single burglary in Delaware within twenty years committed by a man who was entirely sane and wholly sober, and I do not recall any second offenders.

It will not be seriously questioned that society has a right to protect itself. If the whipping post proves to be a perpetual and potential protector against the burglar, the highwayman and the cadet, why cry down its effectiveness? New York had an epidemic of gunmen; Chicago had an epidemic of highwaymen; Boston and Philadelphia made war on cadets. Delaware simply painted her whipping posts and multiplied school houses.

Within recent weeks, in Philadelphia, Judge Norris S. Barratt declared from the bench that nothing except a thoroughly good whipping at a public post would serve to adequately punish a wife beater before him. This learned jurist is intimately familiar with social and political conditions in Delaware and, before the Sons of Delaware, most ably defended the whipping post as an aid to crime prevention.

Solitary confinement has been proved a failure. It rots out the prisoner, destroys all ambition, and when his hour of freedom comes he is without initiative, without occupation and without hope. Trades are now taught these men, but day after day they are “lined up” as professionals, and their lives become a misery to them.

Now I repeat that the basic idea of punishment has to do with the protection of society against the criminal. It would be a little beyond me to explain the psychological effect of a public whipping upon the mind of a professional criminal, but of course I had ideas. The fact remains, however, that the mere prospect of such a whipping keeps men out of Delaware who would not hesitate a second to “shoot up” a dance hall in New York or Chicago.

It is a fact of common knowledge that ship masters of undoubted courage, of tested and proved valor, are as timid as little children when ashore; that firemen who never give a thought to personal peril at a conflagration, bawl and make an awful to-do about having a tooth filled. Frank Gotch, the wrestler, who could tear an ordinary man apart with his hands, bows with absolute submission, I am told, to the will of Mrs. Gotch.

Doubtless the men of science, the psychologists, have a definite name for this phenomenon of the mind. I do not know this word, but I do know that burglars and highwaymen who would brave the police force of Philadelphia or any other large city will not even consider a “job” in Delaware and that these men when asked why, invariably reply that they will take no chance of the whipping post. It may be a display of vanity more than fear. I do not quite know.

I have no quarrel with those who want to reform prisons, but I am a most earnest advocate of any and every method that prevents crime, and this the whipping post does to a marked degree.

The sense of shame that follows a public whipping is quite a different matter from the innermost feelings of the same man flogged in privacy. In the underworld, where there exist strata of preferment just as there are social equations in organized society, a man who has done “a bit” of long duration lives in a degree of reflected glory. A yeggman who has served ten or twelve years in Cherry Hill, Sing Sing, Joliet or any one of the other notorious prisons has a certain standing among his fellows in crime. But it is a curious yet certain fact that the man who is whipped in public loses caste at once and forever. It seems to be that in having been sentenced to be whipped, the scene in the court room, the display in the jailyard and the final flogging—all produce a profound and a lasting mental shock.

This is not true when a mere warder calls a man out of his cell, beats him and then throws him in a dark hole. This performance is followed by mere resentment. The victim of this system, and the prisoner is very often a victim, merely promises himself to kill the warder if he ever has a chance, or some like foolish threat. Not so when a High Court, a Chief Justice, amid scenes of dignity and decorum, orders the whipping. It is the effect upon the mind of the man whipped and the result of the whipping upon the minds of other criminals that count. It is purely psychic but it is none the less effective.

None of the men whipped in Delaware is punished to the point that very great physical torture follows. Such a lashing would create a martyr of a criminal, and this must be avoided.

Criminals of the type that hold up trains, raid banks and rob Government buildings are jealous of their reputations in the underworld. Once whipped they become objects of derision and contempt in their own circles. Some of these men are inordinately vain. It is quite likely that this vanity, affectation or love of even doubtful glory deters them from invading Delaware and daring the post.

Notice how the arrest of a notorious yeggman is always followed by accurate reports of his record. Study these records and you will seldom see that the prisoner was whipped in Delaware. It is idle to assume that these men are afraid to come to Delaware because we have police, a militia and all the other agencies for the enforcement of law. These are common to all communities. They are not in any degree afraid of the physical punishment

involved in a Delaware whipping. Many of them in friendly boxing bouts are more thoroughly beaten up every few days while exercising. It is the preliminaries, the mental picture of the trial, the solemnity of the sentence, the ignominy of the performance, and, last of all, the contempt, ridicule and humiliation at the hands of their consorts, male and female, that produce the result first on the individual whipped, and ultimately upon all of his kind.

If there was nothing to it but a mere flogging by a prison warder of doubtful authority; simply one man in brief authority beating up another man but temporarily in his keeping, there would be, could be, no such result, and the whipping of criminals would probably degenerate into revolting performances with attending scandals. The Delaware system precludes any such possibility.

The women of the nation lead in all humanitarian work as they should. In every large city in the United States, except Wilmington, Delaware, some brute is sent to jail every day or so for wife beating. Chicago has had to establish a Court of Domestic Relations for the almost exclusive benefit of women who have been whipped by beasts who swore to love and honor them. Delaware will never need any such court so long as the whipping post is so near the court house and in such great favor with our judiciary. There is no Judge sitting in Delaware who does not strongly favor the last for wife beaters.

Some of our good friends who call themselves penologists, philanthropists, humanitarians and prison reformers overlook one all important matter in their crusades. This essential is the prevention of crime. Without discussion I will agree to everything that any of them propose for the health and education and reformation of a criminal, but I still insist that he is best off when he is kept from crime.

The people of Delaware are not barbarians. In education, in culture, in true charity and in man's love for man the people of Delaware rank with the best in the land and in patriotism second to none. It is absurd to attempt the indictment of a people of a sovereign State. Delaware has a proud place in the history of the country and is prepared to meet every proper issue as it arises and Congressmen from the wilds of Montana will do well to study the practical results following legislation in Delaware before asking for Federal interference in a purely State matter.

Let every professional criminal in all the world know that Delaware is no field for his operation; that crime here means public whippings on the bare back, the ultimate of public disgrace, absolute enforcement of the law and Delaware will be well served. Other States may toy with the criminal; experiment with crime and multiply the police, but Delaware will continue to prevent crime and thus save the criminal from himself and protect the public from the criminal.

There is no considerable sentiment against the whipping post in Delaware.

TROUBLES OF THE TEXAS PRISON SYSTEM

BY TOM FINTY, JR.

[This is the second and concluding article by Mr. Finty. The first article appeared in the December, 1913, Delinquent. Mr. Finty's two articles are an especially interesting statement.]

In the foregoing I have attempted to outline the situation of the Texas prison system, to show how a burden of loss and debt has followed marked financial prosperity, and to indicate why the public is puzzled over the situation. I shall now endeavor to outline the causes of this condition, my statement being based not merely upon the conclusions of the investigating committee of 1913, but also largely upon the testimony taken by the committee, which testimony I heard and reported. This statement necessarily will include something of a review of provisions of the prison reform act of 1910, of criticisms of the same, and of the revisions which the Legislature recently tried to make.

When the prison reform act of 1910 took effect on January 20, 1911, and Governor Colquitt appointed his prison commissioners, the system was clear of debt except as to a small sum in current bills for supplies just received and on hand. There was also outstanding \$100,000 of bonds secured by a direct lien on the Texas State Railroad. These bonds are still outstanding, and they are not taken into account in any of the statements hereinafter made.

The prison population when the new law took effect was 3,578. Of this number 1,046 were hired out; 831 were working on share farms (a modification of the hiring-out system), and 1,701 were employed upon State account, 586 of these within or near the walls, and 1,115 upon the State farms.

The acreage cultivated on the State farms was 18,097; on share farms 25,363, and on contract farms 18,680; total 62,140.

The prison population on September 30, 1913, was 3,926, all of which force is employed on State account, 733 of the prisoners being in or near Rusk and Huntsville prisons and 2,965 on State plantations. These

plantations now include certain rented lands, adjoining the lands owned by the State. The prison population is classified as follows: White 1,244, blacks 1,919, mulattoes 335, Mexicans 405 and Indians 3. The number includes 92 females, 7 of them white, and 85 black.

The acreage cultivated by the 2,965 prisoners on State farms in 1913 was 36,993, as compared with 62,140 acres cultivated by 2,807 persons at the time the new law took effect.

The reports of the prison commissioners and of chartered accountants show that in the two years next following the date the act of 1910 took effect the prison system's losses from operation were \$722,773.41; that debts aggregating \$1,528,458.04 accrued, and that \$310,000 appropriated from the public treasury had been expended.

Marked difference of opinion as to the cause of this fiscal situation exists. Obviously, the debt is due in part to the operating losses, and both the debt and the losses were in part caused by lack of operating capital.

A part of the debt represents outlay for improvements and equipment necessary to provide housing and employment for the convicts withdrawn from the hiring-out system. A part of it, as already suggested, represents lack of operating capital.

When a large proportion of the convict population was hired out, the men who hired the convicts furnished the land, mules, implements and houses. When the State withdrew the convicts from hire, it had to provide all of these things.

When the convicts were hired out, their wages were paid to the State monthly, regardless of the profits or losses of the contractors. This income furnished an operating capital for the prison system as a whole. It was a substantial income: the State received \$31 a month for each first-class convict, making a large profit after it had paid for food and clothing and for guarding. When the convicts were withdrawn from hire, this steady and dependable income stopped. Expenditures continued steadily throughout the year; the bulk of the receipts came at the end of the crop year, and, of course, the income was as uncertain as is the weather and the crops.

Thus, much of the indebtedness is explained. However, the wisdom of the commissioners in abolishing the contract system almost three years

before they were required by law to do so has been questioned. It has been asserted that if they had permitted the contracts to continue during the three years, receiving the income therefrom, they would have been prepared to enter upon a complete State account system with much better chance for it to succeed. It should be noted, however, for what it may be worth, that some of the contractors said they did not want to keep the convicts under the conditions as to hours of labor, etc. imposed by the act of 1910.

In considering losses from operation of the prison system, it is readily seen that expenses were increased by requirements of the new law. The investigating committee says that \$379,791.73 was thus added to the expense account during the first two years. These requirements were:

1. That 10 cents a day should be paid to each convict who had earned a diminution of sentence by good behavior. The commissioners advocated a repeal or modification of this provision. It is almost generally admitted that the provision in its present form is not only too sweeping, but also that it fails of its purpose. It has had little, if any, effect in the way of encouraging good conduct. Evidently, however, this negative result is due not so much to the fact that the per diem was paid as it is to the fact that the per diem has not been paid. After the system became involved in debt, and the \$310,000 appropriation above mentioned was exhausted, no further payment of per diem was made, except as convicts were discharged.

2. That convicts should be paid for overtime. The comment upon the per diem item applies to this all the way through. Most of the overtime has gone to cooks, waiters and flunkers. Suspension of per diem and overtime payments has caused much dissatisfaction among the convicts.

3. That certain new offices should be created, teachers be provided, and that the salaries of guards should be increased.

4. That better provision should be made for female convicts.

5. That all new convicts should be brought to Huntsville prison before being assigned to other parts of the system. The commissioners recommended the repeal of this provision, because, they said, medical examination could be made at the farms as well as at Huntsville. They never seemed to understand the purposes of the requirement, which was, briefly, to assign the convicts to proper industries, to prevent sending to outside work men who were likely to attempt escape or to foment mutiny, and to secure to all prisoners some training in prison discipline. This purpose being misunderstood, prisoners are sent to the farms on the next train leaving after their arrival at Huntsville prison.

6. That discharged convicts should be furnished a railroad ticket to any point in the State, instead, as formerly, to the place where convicted. The commissioners recommended the repeal of this provision.

7. That the State should bear the expense of sending the corpses of convicts to their kinspeople upon request. Repeal of this also was recommended.

There were two other matters upon which the commissioners were not in agreement. The first was the requirement of the law that convicts should

not be worked more than ten hours a day, this limit to include the time spent going to and from work. The second was the abolition of whipping. This latter was not required by the law, but was enforced by executive order.

Commissioners Tittle and Brahan attributed the losses from operation largely to the fact that the convict population upon the whole was not performing a reasonable amount of labor, as was indicated by the falling off in acreage cultivated. This condition they ascribed largely to the statutory limitation upon the hours of labor, and, further, to the fact that the most effective means of punishment (whipping) had been interdicted by executive order. The farm managers and sergeants, and, in fact, very nearly every officer of the system, supported them in these views.

Chairman Cabell denied the truth of their deductions as to the abolition of whipping, and he asserted that in his opinion these other officers exaggerated the influence of the limitation upon the hours of labor.

Certain of the new officers of the system who testified before the investigating committee said that most of the officers and guards, having been trained under the old order, were not in sympathy with the new law nor with its purposes. This suggestion was reinforced by the testimony of such officers, as is indicated in the foregoing.

The circumstances attending the abolition of whipping ought also to be considered. The prison act of 1910 did not prohibit whipping. It limited it and provided safeguards against abuses. Many of the officers of the system were not in sympathy with such limitations. In the early summer of 1912, Chairman Cabell moved that the use of the "bat" should be discontinued and prohibited. His motion was defeated by the votes of Commissioners Tittle and Brahan. Thereupon, Governor Colquitt ordered the commission to adopt Chairman Cabell's motion. It did so, unanimously.

It was generally known throughout the system that practically every officer thereof believed it impossible to control convicts or to make them work unless the threat of whipping hung over them. Yet the first news of the change in punishment methods went out through the press during a political campaign. In many parts of the prison system, so the investigation disclosed, the convicts got their first information of the change from new prisoners. The effect was bad. Convicts reasoned that the authority of officers directly in charge was negligible; that these officers had said they

could not control convicts or make them work without the “bat,” and, therefore, since the bat has been taken away, they could safely decline to work.

The reluctance of these prison officers to shape their course to the new requirements, I believe, was based upon sincere conviction. The influence of their attitude upon results can only be conjectured. In this connection it ought to be stated that these officers asserted that whipping was less inhuman than the substitutes provided. These substitutes were chaining-up and dark-celling. The former consists of fettering the convict’s wrists at the end of chains suspended from above at such height as to cause him to stand erect, but flat-footed, with his arms extended as high as they will go. There have been some complaints that convicts have been chained so high as to require them to stand tip-toe. The possibilities in the use of the dark-cell were illustrated in the Harlem farm tragedy.

A part of the prison system’s losses from operation were admittedly due to the following named causes:

1. Heavy damage to cane crop of 1911 by freeze.
2. Damage to cane and other crops in 1912 by drouth.
3. Burning of certain shops in Rusk and Huntsville prisons, the losses aggregating \$286,931. Neither the indebtedness nor operating account were affected to the full amount of this loss, for only about \$60,000 was expended in replacements. But both indebtedness and operating loss were further swelled, to an unmeasured extent, by reason of the interruption and disorganization of industries; for a time there was no work for many of the convicts to do.

There was also evidence in the investigation to show that the plan of organization was imperfect. For one thing, the commissioners were serving under the statute, with their terms limited to two years, and they were therefore subject to removal in the event of change in the office of governor. Also, under this law, they were serving in the dual capacity of directors and executive officials. The system, therefore, had three heads of co-equal authority. Much of the testimony indicated that this system did not work well. The men who wrote the prison bill in 1910 did not originally intend to provide such a system, but at the last moment they changed their bill in response to an eloquent plea in behalf of the “commission form of government.”

When the present Legislature met in special session in July, 1913, prohibition was still an active issue. Moreover, there were rumors that

Governor Colquitt and former Governor Campbell would contest for a seat in the United States Senate in 1916, or earlier should an opportunity arise. Notwithstanding these difficulties or diversions, the Legislature, upon the whole, seemed sincerely desirous of providing a solution of the prison system problem. There was, however, no leadership upon the subject which any considerable number of the members seemed willing to follow. Indeed, the leaders were not in agreement. Most of the members confessed their ignorance of the subject, but in this situation many of them offered remedies of their own devising. Pride of authority flourished. It had become quite the style to advocate "humanitarianism;" accordingly many impracticable propositions were advanced. Most of these were rejected; some found their way into the bill finally passed.

This bill provided that the members of the prison commission should hold office for six years, their terms lapping; that they should be paid \$1,200 a year each, and should not be required to give all of their time to the service. In other words they were to act as a board of directors. They were authorized to appoint a general manager, and were not limited to the State to find one. This general manager was to receive not more than \$6,000 a year, and to have full authority to employ and remove all other officers and employees of the system. The bill also modified most of the provisions of the act of 1910 which had been criticized; the limitation upon the hours of labor was slightly modified, and the per diem requirement was repealed. The provision of the law authorizing whipping within limitations and with certain safeguards was permitted to stand.

These features were in line with the recommendations of Governor Colquitt, but he vetoed the bill because of other provisions. One of the objectionable features, this in lieu of the per diem requirement, was an elaborate scheme for profit-sharing as between the State and the prisoners. Many members of the Legislature and many citizens as well, thought it ludicrous to embark upon a system of profit-sharing at a time when there were no profits to be shared, and to bind the State to stand all losses while sharing the profits of prosperous years. My personal opinion is that the scheme, in the circumstances and in its detail, was chimerical.

Subsequent to the adjournment of the special session, as I have heretofore stated, a new prison commission was appointed, this time for six years' terms under the constitution. W. O. Murray, a successful merchant of

Floresville, is the chairman. He served fourteen years in both branches of the Legislature, devoting himself, as chairman of the Committee on Appropriations, to the fiscal affairs of the State, and he resigned from the Senate to become the chief officer of the prison system. The second new member is C. J. Bass of Terrell, also a successful merchant. The third new member appointed is W. O. Stamps, a well-to-do farmer and saw mill man of Upshur county. Mr. Stamps served two terms in the Texas Legislature and was a member of the special committee which investigated the prison system in 1909. He is not exercising the functions of the office to which he was appointed, for the reason that Commissioner Tittle claims title to the place, and has been sustained in this contention by a district judge. The prison organization therefore will remain incomplete until the court of last resort has passed upon the case.

The new board is assisted by an appropriation of \$1,350,860.27 to pay debts, half of it not to become available until September 1, 1914. It will not clear up all of the indebtedness. The total amount appropriated to the prison system since the act of 1910 became effective is \$2,210,860.27.

The indebtedness has increased since January 1, 1913, if payments made out of appropriations from the State treasury are not considered, but a fair statement of present indebtedness or of losses from operation in 1913 cannot be made until the farm products of 1913 have been sold. Cane is harvested during the early winter.

It is known, however, at this time that the crops of 1913 have not turned out well and that the results of the year's operations will show on the wrong side of the ledger. Nevertheless, it is inevitable that a large sum must be expended to plant and cultivate a new crop in 1914, the returns from which will not be received until late in the year.

The losses have been increased through damage to the plantations through the recent floods of the Brazos River. It is estimated that such damage will amount to \$500,000. The indebtedness, however, has been reduced in effect through a recent opinion of the Attorney General, holding that the law authorizing per diem payments to convicts is unconstitutional. The Prison System owed the convicts quite a large sum of money upon account of per diem, and this indebtedness has in effect been wiped off the books through the Attorney General's opinion.

In this situation, it is believed that Governor Colquitt will again convene the Legislature in special session in January to further deal with the problem.

In my opinion, the chief needs of the prison system are a plan of organization of the sort which the Legislature sought to provide in its recent act; abandonment of the big plantation scheme, and adequate operating capital. Many penologists coming to Texas from other states have praised the big plantation scheme; the idea of working prisoners in the open air and under "God's sunshine," rather than in shops, appeals to them. A more intimate knowledge of the plantation system might convince these persons that its alleged excellences are largely moonshine. It should be remembered, for one thing, that most men in Texas, whether in shops, stores or offices, get more open air and God's sunshine than do persons engaged in similar pursuits in more northerly latitudes. I believed that the big plantation system was bad even when it was financially profitable, or seemingly so. It has now ceased even to be profitable. Heretofore, few people agreed with my criticism of this system. There have been converts; yet, I am frank to say that not a very great number of persons are in agreement with me. Many now are opposed to operating the plantations now owned by the State, but most of these would have the State buy other large farms in a different section, abandoning the growing of sugar-cane.

Practically all of the able-bodied convicts of the prison system have been put to work on the plantations regardless of their former occupations and regardless of their inclination to flee or to foment trouble. The four big plantations are situated in the valley of the lower Brazos River, in a wooded country which invites escapes. Consequently, it is necessary to have a veritable army of officers and guards. The pay-roll is enormous, although individual compensation is small. Because the compensation is small there is a constant shift in the guard personnel. As a rule most of the guards are unfit for the service. This assertion is supported by the testimony of a number of the officers of the system. Yet the convicts are directly and wholly in the charge of these guards the greater part of the time, sometimes being miles away from headquarters and officers.

The plantations are in a rainy country; the heaviest work of the year, cane harvesting, is done at a season when the weather generally is inclement. It is true that free labor encounters the same conditions, but it is

practicable for free labor to go to shelter, while impracticable to move large forces of convicts expeditiously. Moreover, free labor, as its name implies, is free to lay off when it so desires; prisoners, as the word implies, cannot do this.

The Rusk and Huntsville prisons have cells in which usually one, and not more than two convicts, are kept. But only 16 per cent. of the total number of convicts are in these prisons. All others are on the plantations. The act of 1910 called for fireproof cell buildings on the plantations, but it did not provide funds wherewith to build them. Moreover, the prison commissioners, like their predecessors in office, deemed it impracticable and unnecessary to provide such buildings. Accordingly the new buildings which they have erected are of the old type, plus some improvements. These farm prison buildings are good of their kind, but the kind is bad.

They are wooden dormitory buildings. In each dormitory a large number of convicts are housed, sometimes more than 100. They commingle and converse freely within certain hours. Among the convicts in every camp there are agitators, "congressmen" their fellows call them. The conditions are such as to permit, if not indeed, to invite, immoral practices, conspiracy and mutiny.

The efforts to employ practically all the able-bodied convicts on the farms, to cultivate a large acreage, and to meet the varying demands for labor—this latter necessitating frequent transfer of convicts from plantation to plantation, and from shops to the farms—has practically defeated efforts at classification of prisoners as was required by the act of 1910.

I do not see much hope for the Texas prison system unless provision shall be made for a business like organization; unless there shall be substituted for the plantation system a line of industries which will admit of the convicts being under the actual control of competent and suitable officers instead of incompetent and poorly paid guards, nor unless adequate operating capital shall be provided.

In view, however, of the experiences here detailed, I am fearful that before such reforms shall be enacted the people will grow weary of footing the bills and will permit a restoration of the contract or lease system, possibly in disguise. The present situation is not unlike that of 1870 when the lease system was adopted.

THE PRISON SHIP “SUCCESS”

There is now being exhibited along the Atlantic coast the oldest and strangest craft afloat in the world to-day. This is the old British convict ship “Success,” now the only survivor of the “Ocean Hells,” as the ships of England’s fleet of felon transports were called in the first half of the last century.

Built in 1790, at Moulmain, by the old pagoda “looking eastwards to the sea,” the “Success” is now 123 years old. No ship of anything like her great age to-day is seaworthy, yet this old hulk under her own sail has succeeded in crossing the Atlantic, her time of 96 days, however, creating no new record.

Massively built throughout of solid Burman teak, the “Success” was first launched as an armed East India merchantsman with beautiful brass guns bristling from her sides and fitted handsomely for the reception of princes, nabobs and the wealthy traders of the Orient, whose goods, spices, aromatic teas, ivories, jewels and other costly luxuries she carried over the seven seas to the ends of the earth. Her tonnage is 589, and she is 135 feet long and 29 feet beam. Her solid sides are 2 feet 6 inches thick at the bilge, and her keelson is a solid teak baulk of tremendous thickness, with sister keelsons little less massive. Her square cut stern and quarter galleries stamp her at once with the hall-mark of antiquity, and her bluff bow shows that she could never have distinguished herself for a high rate of speed.

Yet pains were taken to make her trim and smart, and fit to hold a leading place among her sister ships of the Anglo-Indian fleet. Remnants of great gilded scrolls upon a rich blue ground have been brought to light, on scratching away the super-imposed coating. The quarter galleries, too, were originally decorated with massive and artistic carvings. Escutcheons can easily be traced at regular intervals from stem to stern, and the fo’c’sle head, raised high aloft forward, bears at its extremity a symbol of innocence and beautiful womanhood in the original figurehead of exquisite design—a strangely inappropriate emblem in the days when crime-stained convicts in clanking chains put to flight all thoughts of innocence and beauty.

Broken only by an occasional conflict with a pirate craft, the “Success” had an honored life on the ocean until 1802, when she was first chartered by the British Government to transport to Australia the overflow of the home jails, the unfortunate wretches who at that time were sentenced to from seven years to the term of natural life for offenses that would now be considered trivial and petty, warranting at most but a small fine.

Some of the greatest writers of the 19th century devoted their pens to horror-compelling descriptions of the voyages of the felon-fleet, of which the “Success” was in her day the commodore or principal devil-ship. “The Convict Ship” described by Clark Russell in his novel of that title is in every detail an exact picture of the “Success” as she is to-day, unchanged after all her years, nothing being omitted but her human freight and their suffering from the cruelties and barbarities perpetuated upon them. In “Moondyne,” too, John Boyle O’Reilly described at first hand the “Hugomont,” a sister ship to this ocean hell, with a faithfulness which anyone on visiting her must realize.

The human cargoes on these convict ships died off like rotten sheep. Here is an extract from an official record of the maiden trip of the “Success” as a convict ship. Dr. White, the colonial surgeon, reported:—

“... of 939 males,” he says, in 1802, “sent out by the last ships, ‘Success,’ ‘Scarborough’ and ‘Neptune,’ 251 died on board, and 50 have died since landing, the number of sick this day is 450, and many who are reckoned as not sick have barely strength to attend to themselves.”

In a further portion of his report, describing his first boarding of the “Success,” Dr. White said that he found dead bodies still in irons—nearly all convicts made the full voyage, often lasting nine months, heavily ironed—below amongst the crowds of the living. Here is his own words:—

“A greater number of them were lying some half, and others quite naked, without bed or bedding, unable to turn or help themselves. The smell was so offensive I could hardly bear it. Some of these unhappy people died after the ship came into the harbor before they could be taken on shore. Part of these had been thrown into the harbor and their dead bodies cast upon the shore, and were seen lying naked upon the rocks. The misery I saw amongst them is inexpressible.”

Engaged in this hideous trade, the “Success” continued to serve until 1851, in which year she was permanently stationed as a receiving prison in Hobson’s Bay, Australia.

Cells, strong and gloomy, were constructed on the 'tween and lower decks, and in these the most desperate criminals that England and Australia could produce were "accommodated." The lower deck was devoted to the very worst type of convicts, and only prisoners of the better class confined in the 'tween deck cells. "Refractory" prisoners were immured throughout the long days and nights in the noisome dungeons in the dark depths of the lower hold, and were never allowed on shore on any pretext. Their only exercise and opportunity of enjoying a breath of fresh air was restricted to one hour in every twenty-four, when they were marched from stem to stern upon deck. The exceptionally high bulkheads prevented them seeing aught but the strip of blue Australia sky directly overhead; the white-winged gulls, as they glided over the vessel, seemed to mock the prisoners in their heavy chains. From long confinement in the dark cells the eyesight of the convicts was generally ruined.

The corner cells on either side of the lower deck are the dreaded "Black Holes," in which prisoners who had been guilty of some breach of discipline or fractious conduct were punished by solitary confinement lasting from one to one hundred days. These small and tapering torture-chambers measure only two feet eight inches across. The doors fit as tight as valves and close with a "swish," excluding all air except what can filter through the perforated iron plate that was placed over the bars above the door, in order to make the hole as dark and oppressive as possible. A stout iron ring is fastened knee high in the shelving back of the cell, and through this ring the right wrist of the prisoner was passed, and then handcuffed to the left hand; the consequence was that he was thus prevented from standing upright or lying down, but was obliged to stoop or lean against the shelving side of the vessel as it rolled to and fro on the restless waters of the bay. Starved, beaten and abused as they were, the wonder is that so many of even the prisoners were able to endure punishment as they did.

In 1857 the disclosures that had been made of the brutal and inhuman treatment meted out to prisoners created a fierce outcry in Australia, amounting almost to revolt against the English Government, and resulted in the abandonment of the hulk system. For some years later—from 1860 to 1868 the "Success" was used as a women's prison; then she became successively a reformatory ship and ammunition store, and later all the prison hulks were ordered to be sold on the express condition that they were

to be broken up, and their associations lost to the recollection of the residents of Melbourne. By a clerical error, however, that condition did not appear upon the terms of sale of the "Success." Hence she became the only British convict ship afloat. It was not until 1890, however, that she appeared before the public as an exhibition ship. In 1892 a gang of Sydney, N. S. W., residents stealthily boarded her to revenge themselves for the outrage on their pride caused by the exhibition of their ancestors, and all the figures were mutilated beyond repair. The figures were replaced, but in order to make their work more certain she was again attacked, scuttled and sunk in Sydney Harbor, but after the lapse of some years and at enormous expense her owners raised her, and since then she has been on exhibition not only in the Antipodean colonies, but has circumnavigated Great Britain and Ireland twice, and been shown five times in London. Her visitors have numbered over 15,000,000 people, and have included the King of England, the Prince of Wales, the Prince and Princess Henry of Battenburg, and other members of the royal family, the German Emperor, Captain Dreyfus of Devil's Island, Lord Charles Beresford, the late Mr. W. E. Gladstone, and other "notabilities."

In 1912 she attempted what was perhaps the greatest feat in all her remarkable career—that was, to make the passage across the Atlantic under her own sail, unaccompanied by tug or steamer. The shipping world was aghast when the voyage was projected. "Impossible," said every man that ever sailed the seas in ships, "that this century and a quarter old hulk could brave the spring hurricanes of the western Ocean!" Lloyds refused her insurance, the British Government refused her clearance and sea-captain after sea-captain refused her command, but finally a stout old skipper, Captain John Scott, and a gallant crew of adventurous souls under the command of Captain D. H. Smith, the owner, hoisted sail and took her out of Glasson Dock on the very day that the ill-fated "Titanic" sailed from the port of Southampton. For 96 days she battled bravely, her staunch old hull defying the crashing gales and mountainous seas and at length made port in Boston Harbor with a crew, worn out and half starved but bravely triumphant, to the applause of press and public, who likened the splendid feat to the epoch-making voyage of Christopher Columbus.

Since then the "Success" has exhibited in Boston, Providence, New York, Asbury Park, Philadelphia and is now being shown in southern

seaports.



PROGRESS IN MASSACHUSETTS

BY WARREN F. SPALDING

Secretary, Massachusetts Prison Association, and Member State Parole Board

The legislation actually enacted during 1913 constituted but a small part of the progress made in prison reform. A combination of circumstances caused a reference to the next Legislature of many measures which had the hearty approval of the leaders in both branches. The reorganization of the prison commission, late in session, led to the postponement. It was felt that the new board should pass definitely upon the proposed legislation.

Governor Foss outlined in messages to the Legislature a program for prison reform, the spirit of which is likely to be the basis of future Legislation. The most important of his recommendations is that the State assume the control and administration of all the county prisons, on the ground that crime is against the State and not against counties, and that the care of criminals is a function of the State. This would make it possible to classify both prisons and prisoners.

If the prisons are to remain in the control of the State, he recommended that all the long-term men be gathered in a few of them, and that schools which should give both mental and manual training be established, at the expense of and under the control of the State, making the reformation of such men the definite purpose of imprisonment.

The State prison buildings are old, and the construction of a new prison has been under consideration for several years. To the mind of the Governor no steps in this direction should be taken until the entire felon population of the State has been studied, with a view to the construction of buildings which will provide for the classification of such offenders, and the establishment of a system of grading and separation of men who need different methods of treatment. This may involve the use of the modern part of the present prison for the worst men, and the construction of new buildings elsewhere, for other classes, with ample facilities for outdoor work for those who can be trusted. The Concord reformatory, built

originally for a State prison, and well adapted for it, could be used for the State prison. If that should be done, it would be possible to have a new reformatory, built to fit reformatory work. The buildings of the reformatory at Sherborn are wholly unfit for such an institution, and the construction of smaller buildings on the reformatory plan is one of the possibilities.

It is expected that the prison commission will report upon these matters to the next Legislature.

Of completed legislation, the most important measure passed in several years is the law establishing a board of parole. Heretofore the prisoners in the State prison and the two reformatories have been paroled by the prison commission. The work has been done in a mechanical way, solely on the basis of the conduct of the prisoner, his fitness to return to the community receiving little if any consideration. Comparatively little attention was given to the supervision on paroled prisoners, so long as they did not commit new crimes.

The new parole board is required to see all prisoners who are to be paroled, and is making fitness for free life the main consideration in releasing. Its members are paid for their work and can therefore give to it all the time needed. When the work is fully in hand, it will have information covering the entire history of every prisoner, enabling it to pass intelligently upon the case. The prison commission, which has the supervision of paroled prisoners, is changing its methods, and eventually will know the whereabouts and conduct of every individual.

The requirement that men shall become fit to be released is likely to lead to changes in the prison system, as it is manifestly unfair to require men to improve in confinement unless the State provides the means for improvement, and makes that the first purpose in dealing with them.

The treatment of criminal drunkenness has attracted much attention recently. There is general dissatisfaction with present methods—short sentences for punishment—and a feeling that “drunks” should be separated from other offenders. On the recommendation of the Governor, a commission was created to study the whole subject of drunkenness and its present treatment.

In 1911 a law was passed, authorizing the establishment of departments for “defective delinquents,” with a view to segregating those offenders whose crimes were due to mental inferiority. No appropriation was made however, and nothing could be done. The Governor recommended the erection of buildings at the State farm, and at the reformatory for women, but the Legislature, instead, authorized the Governor and council to lease buildings for the purpose. Though the new jail at Fall River, never opened, is not specified, it seems plain that the intention was to use that. It is doubtful however if it will be found suitable.

An important change was made in the law authorizing a suspension of sentence in cases of minor offenders who have been sentenced to pay fines. The old law permitted this, but many judges used the power in comparatively few cases. The new law compels courts to put fine cases on probation, giving the offender time to pay, unless it is believed that he will default. It is expected that this will greatly reduce the number of commitments for non-payment of fines.

COMMISSIONER RANDALL'S REPORT

[When the man that people like to speak of as "Frank" Randall went to Massachusetts from Minnesota as chairman of the Massachusetts Prison Commission it was expected that he would be "frank." Here is a summary, from the Boston Herald of parts of Mr. Randall's first annual message.]

In an interview given the first of the year by Frank L. Randall, the new chairman of the Massachusetts Prison Commission, he made several suggestions for the improvement of the penal system of Massachusetts.

In his six months' service he has been taking stock of the situation. While he has found many things that warrant the pride the State has in her penal institutions, he has found also not a few serious problems of which the general public know little or nothing. He pays high tribute to the sheriffs and others engaged in the penological work of the State. But he discusses a large number of suggestions as to the supervision of the prison industries of the commonwealth, the indeterminate sentence, the trying out of applicants for employment as guards and in other capacities, the pardoning influence of the wardens and superintendents, and especially as to the very large number of persons on parole, of whom the State has lost track altogether.

"Did you know," he asks, "that in this State there are 1,056 persons from the State reformatory, 217 from the State prison and more than 200 from the woman's prison who ought to be making regular monthly reports to the proper authorities but of whom the State knows little or nothing?"

"This is a very serious situation. According to the records all these persons were paroled. The terms of the parole in each and every case was a regular report every month, that the prison officials, representative of the power and supervision of the State, might know exactly the situation of each convicted person who has been liberated upon obligation to keep the State informed of his movements.

"Some of these persons have never rendered a single report. Others have reported for a time, and then ceased to trouble themselves about the matter. In very many cases their whereabouts is unknown.

“Now the sentences of these persons have not expired. They are still nominally in the charge of the State, which has granted them their liberty upon conditions. There ought not to be a single such case. In no instance should the State be ignorant of the whereabouts of a prisoner unless he is a fugitive from justice. These persons may not be classed as fugitives, and their sentences have not expired, yet the State has no trace of them.

“This situation certainly shows a flaw in our system and a serious one.

“I am strongly of the opinion that the prison industries of the State ought to be differently managed.

“Our boards now are primarily concerned with the welfare of the prisoners, and properly so. The welfare of the inmate of a penal institution must come first. But there is a service to the State which he is rendering, and it is the part of business efficiency to make that service as large and of as good quality as possible.

“The industries of the penal institutions of the State are not managed in a business way. Here are hundreds of workers making thousands of dollars’ worth of goods, and no one who is expert in business affairs is held responsible for the administration of this industrial system. The wardens and the superintendents look after these details as one of their duties. But neither they nor any other official can devote the time and attention to these industries which they ought to have in order that the State may get from them the largest return and the workers themselves derive from them the greatest benefit for themselves.

“The one officer who now gives all his time to the concerns of the penal system is the chairman of the board, and he has a multitude of matters to occupy every moment. There ought to be some person of commercial ability, a trained business man, who should give his whole time to the dollars and cents of the penal establishment of the State. Let the commissioner give his attention predominantly to the humanitarian side of the work. But let us have a trained expert who shall develop new industries, improve the system of marketing the product, and look in general after the business side of the prisons just as the superintendent looks after these matters in any private enterprise. It will pay the State to consider this matter.”

As he proceeded in his discussion of these problems it became more and more evident that to the commissioner prison service ought to be a life work, a professional occupation, to which men should give their lives, just as they go into law or medicine, and that this should be the case with the guards as well as with the wardens and the heads of the penal system of States. This appeared in his discussion of the warden's influence on the granting of pardons.

"I myself got caught by my ignorance of one of the kinks in the laws of the country some years ago," he said. "It was this way. Out in Minnesota there was an Indian boy in prison who was dying of tuberculosis. I investigated his case, saw the proper parties, and went to the executive with a plea for pardon that the lad might go where there was a chance for the recovery of his health. I had the influence of senators and prominent men. And at the last minute I found that I could not get anything done because my name appeared upon the petition.

"You see, it is assumed that it is not wise for the guard or the warden to be in any way friendly with his prisoners and at the same time to have influence for the securing of pardons. He might try to use his influence for the advantage of his favorites, and give them their liberty, not because they were ready for it, but out of personal reasons. That was the old thinking on the subject.

"But the new thinking is better. If you have the right kind of warden there will be no danger of the abuse of any such power. He will be so sincere a friend of each and every prisoner that he will not use his influence to free a man until he is sure the convict is ready to return to society with safety to himself and to his fellowmen. When you have that kind of warden his opinion will be the very best that it is possible to have.

"The same point applies in the case of the guard. The old theory is that the guard must not talk with a prisoner except on matters of discipline. He might become interested in a prisoner and that would be bad for discipline. The new and better idea is that we should have guards who mean to make penology a serious professional occupation, a life career, and then their attitude toward a prisoner changes entirely, and the danger of favoritism disappears.

“In most cases when a man applies for a place as guard we look him over and tell him to put on a uniform if he bears scrutiny. He may pass some simple tests in a civil service examination. But what about his temperamental fitness for the responsibility of the care of prisoners? That is, perhaps, the most important qualification. As it is, we have no means of determining it.

“I wish we might have some sort of central agency for the trying out of prospective guards. When they have made good and manifested a disposition seriously to study and practice the science of penology then they become very valuable to the State. Men who go into the occupation as a makeshift are expensive to the State in the long run. If we could test him in practice the credentials a man would bring from that central clearing house would be the best possible guarantee of fitness.

“The science of penology in this country has advanced with very rapid strides. But the art of penology has not kept pace with it. And the reason is suggested in what I have said. There are too few who mean to make penology a real career. What we need is the type of man who can see the possibilities of service to the State in his kind of work.

“Another matter which has been already a subject of study with me here in Massachusetts is the practice we have of mixing in our institutions two classes who ought to be kept apart. We have the workhouse cases and the prison cases. The former will include probably the older and the more confirmed offenders, many who are less hopeful of reformation, the careless and the professionally delinquent. They come and go and come back again quite as a matter of course.

“But very many of the prison cases will be younger persons convicted of more serious offences. They will include many who can be appealed to, that are not confirmed in crime, who will respond to influence of the proper sort.

“Now, it is not good policy to mix these cases. The one class comprises many who are glad to be fed and lodged and sheltered by the State. The others must not be permitted to learn to think of themselves as thus, subjects of the State’s care.

“I would have these men sentenced indeterminate, not to be released until it is evident that they are ready for liberty. They must be treated as individual cases and adjustments must be made in each instance. I would place their release in the discretion of certain officials who may be presumed to be best prepared to say whether or not they are ready for release.”

In general Mr. Randall referred to the need of the removal of the work of prison officials from all political and partisan influences and control. He named the State of Ohio as a community which has lately taken a very advanced step in penal legislation. The State of Illinois was referred to as an example of precisely the opposite sort. The commissioner told of his experiences in attending the annual meetings of the prison workers of the country, when year after year there will appear different sets of officials from the same city or State. “How can there be any real progress, or any development of the art of penology, when there is so little tenure of office?” he asked with a smile.

“This country,” he added, “is regarded all over the world as a great laboratory where all sorts of theories have a chance to be tried out. This is because of our federal system. The United States has nothing to do except with a few federal prisons. Each State of the forty-eight has its own penal institutions. Thus, as you go about the country you may see almost every sort of plan, the most advanced and the most belated, in operation. For that reason deputations from foreign countries are sent here often for observation and study. Massachusetts ranks high, and deservedly so, although there are many opportunities for improvement.

“One thing that must be remembered is this, that it is almost impossible to tell in advance how a plan is going to work. It may be wrought out with great care. But we have human nature to deal with, and exceptions to rules occur pretty frequently. Often a seemingly unimportant provision may prove very valuable. Then it must receive the place of importance that it deserves, and be adapted to varying conditions everywhere. And often what has seemed to be important will turn out to be of very subordinate consequence.”

VERMONT'S STATE PRISON IN "THE HONOR SYSTEM LINE"

[The Boston Globe has recently published the following article. Warden Lovell of Windsor seems to be running Sheriff Tracy a close second.]

Wilson S. Lovell, the superintendent of the Vermont State Prison at Windsor, has advanced ideas concerning the management of convicts.

"When I can't treat them like human beings," he says, "I'll give up the job."

Certainly his prisoners have privileges not generally accorded elsewhere to offenders against the law who are serving sentences.

They are permitted to keep razors and to shave themselves.

If an occupant of the electrically lighted cells doesn't like the white-wash on the walls, he can replace it with a paint of cheerful red or any other color which does not offend his artistic eye.

Many of the men, who have nearly served out their terms, work about the town under a keeper and on the prison farm. For the work about town they receive approximately 50 cents a day for their own personal use.

The prison cows are driven out to pasture, some distance from the institution, but there is nothing in the garb or manner of the persons who drive them to suggest that they are convicts, but nevertheless they are. They are allowed to go unattended—in a word are trusted—put on honor.

The women inmates, who do all the housework of the prison with the exception of the cooking, which is done by the men, have unprecedented liberties.

They are allowed all over the place.

One can see them of a morning carrying baskets of clothes to the clothes-yard outside the walls.

They gather raspberries and strawberries in the prison garden, which is unsurrounded by any barrier.

In the afternoon, when their work is done, they are at liberty to read, crochet or sew in their rooms, which are all in a separate building, and quite as airy and well furnished as those of the officials.

Supt. Lowell indulges them in automobiling, evenings, taking them out three or four at a time, and when there is a band concert on the village green they may be seen sitting on the benches of the lawn facing the street, attended by the prison matron.

Either there is something in the old saying “honor among thieves,” or else, being treated so well, the prisoners have no desire to try to escape from their “happy home.” At any rate they seem well content, look well fed and well kept and are a credit to the “humane treatment.”

Within the last two years there have been none on the sick list in the prison hospital.

Before the advent of Mr. Lovell the prisoners filed in line to the yard three times a day, summer and winter, and received their bowls of soup or plates of hash through a slide which extended outside from the kitchen. Each one would then go to his cell and eat his portion. They now have a large dining room with long tables running the length of the room. Here they are fed upon “the fat of the land.”

There is a splendid vegetable garden in the rear of the prison—the pride of Supt. Lovell’s heart. Such large, juicy, red tomatoes, rows of string beans, cucumbers, lettuce and watermelons, beets, squashes, cabbages, and below a field of sweet corn! All of these vegetables are used for the prisoners; nothing is sold outside.

They are allowed from three to four ounces of meat a day. They eat molasses on their bread on week days, great glass jugs of it being placed at intervals on the long tables; but on Sunday they are given butter. On holidays, Christmas and Thanksgiving, etc., they have quite as good a dinner as any one, a turkey and “all the fixings.”

The men of the prison are mostly engaged in making shirts. There is a long, well-lighted workshop, two stories high. The shop is exceedingly well

equipped with electric lights, electric fans, electric flat-irons, sewing machines and cutting machines.

At the rear of each man's chair is a pail of water, a cake of soap, and on the back of his chair a towel. Under the long work tables, suspended by hooks, are small mirrors—the personal property of some of the vainer fellows. So the toilet is not neglected, but scrupulously attended to at the sound of the bell at noon, and at 5:30 in the afternoon.

The men have a ten-hour day, beginning at 7:30 in the morning, taking a half-hour off at noon, and finishing at 5:30 P. M.

They seem interested in their work—looking up with good-natured smiles at the curious visitor.

The men also make their own wearing apparel, everything but shoes and stockings. This work is done in the State workroom. Here they also repair their shoes and darn their socks. They also use the room as a barber shop, but the old fashioned ideas of the shaven poll are done away with and the prisoner has just an ordinary haircut.

An interesting feature is the store of the prison. In it are the various specimens of the handiwork of the prisoners. These are for sale, and comprise watch chains, charms, and hat pins in onyx, carved wooden boxes, strange wooden birds with spotted wings, and worsted mats.

One of the prisoners, who never took a drawing or painting lesson in his life, has painted a picture of the River Dorderecht, Holland. It is well drawn, and the coloring is extremely good for an amateur.

There is a chapel in connection with the prison, and here, on Sunday mornings at 9 o'clock, service is held, and visitors are welcome. The choir is composed of some of the prisoners. The women are excluded from the service, having one of their own in the afternoon, to which the public is not invited.

Mr. Ford, the white-haired chaplain, calls the men "my boys," and he certainly seems to have a wonderful influence over them.

Evenings they sit in their cells reading by electric light, or engaged in making various things to sell, for which, when sold, they receive the money. At about 8 P. M. the guard, carrying a lighted torch, proceeds along the tiers

in the men's section and stops at each cell to give the occupant light. They are allowed to smoke a pipe, and the tobacco is furnished by the prison authorities.

An unusual privilege is an opportunity to procure little outside luxuries with any money which they may have earned. Every Wednesday the warden or the chaplain makes the rounds of the cells and inquires of each one what he would like to have purchased. In this way they acquire many little comforts which they otherwise would not have.

LEGISLATION IN KANSAS

BY J. T. HOWE

Secretary State Board of Control.

The last Kansas Legislature made few changes in the laws regulating the treatment and government of prisoners in the several prisons. The State has always endeavored to treat its prisoners as humanely as possible, and but few laws were ever passed relative to this because the prisons are under a board that has authority to make all necessary rules for governing these institutions.

The principal changes made by the last Legislature were in the scope of the several boards. The penal institutions, namely, the Penitentiary, Boy's Reformatory, Boy's Industrial School and Girl's Industrial School were placed under the Board of Corrections. The Schools for the Deaf and Blind were placed under the control of the Board of Administration which has charge of all the State Schools. The Board of Control has charge of the charitable institutions, namely, asylums, State Orphans' Home and has supervision over all private hospitals, home-finding societies and charitable institutions in the State.

The two important laws passed were the parole law and the payment of wages to prisoners. The new parole law permits the judge to parole any person except in certain cases, before he or she has been committed to an institution. The law best explains itself.

"Any person convicted of any felony, except murder, forcible rape, arson, or robbery, such convictions being for a first offense and imprisonment in the penitentiary, Kansas State Reformatory, or Industrial Schools for Boys and the Industrial School for Girls, the court before whom the conviction was made may parole such person either before or after sentence has been pronounced, if the court is satisfied that if permitted to go at large he would not again violate the law. He may be permitted to remain at large until such parole has terminated, provided that the court shall have no power to parole any person after he has been delivered to any of these institutions."

This is considered one of the best laws passed regulating paroles.

The bill providing for the payment of wages to convicts provides that the Board of Corrections may allow a prisoner not less than \$.10 nor more than \$.25 each day for work done, over and above the day's task as assigned. This money is to be sent to the family of the prisoner, which is dependent upon him for their care and keep. If the prisoner have no family, the money can accumulate until the expiration of the prisoner's term and is then given to him. He may draw at any time from such fund for his personal needs so long as he does not use it improperly. This law does not fulfill its purpose. Its weakness is that in the average prison, a convict is assigned about all the work he can do and has but little time for extra work, owing to his physical condition. A better plan proposed would be for the State to allow to the prisoner a specified sum for each day at work, or for the county from which the prisoner comes to pay the family a certain monthly sum, paying such sum as may be agreed upon by the county commissioners. By the old method, the Board allowed them \$.033 per day. For certain offenses the prisoners are fined and the fine is paid from this fund. The payment of a wage or the providing of some plan of caring for the needy families is a growing question, and so far Kansas has found no satisfactory method, but this question will probably be taken up by the next Legislature.

Another law passed was that permitting the county commissioners, in counties having over 35,000 population, to appoint a matron for the county jails. This has often been done, but was never legally authorized until the last Legislature.

Taking the Kansas laws as a whole, they seem to be adequate to meet the present prison conditions. The State law places all these institutions under the Board who have exclusive control in their management and in adopting of rules and regulations necessary to their government. The only question is the proper method of dealing with the families of the convicts. There has been little complaint regarding the treatment of the prisoners and there will be but few changes in the laws until some demand is made.

BOOK REVIEW

Manual for Probation Officers in New York State. State Probation Commission. Albany 1913, J. B. Lyon Co. Free.

The State Probation Commission should be sincerely congratulated upon this most valuable manual. Although it is technically limited to New York State, its usefulness will extend far beyond those limits. Its principal merit lies probably in the fact that it is a well-indexed, complete compilation of all the laws pertaining to probation in that State. The presentation of the material in its analyzed form is an invaluable addition. The laws are cited both in statutory and in chronological order. Separate chapters are devoted to the discussion of the provisions pertaining to the appointment and compensation of probation officers; of court procedure and practice; of the duties, powers and methods of such officers. Facsimiles of the forms of records used, are also taken up in a separate chapter, similarly the history and functions of the Commission. In the appendix, among other interesting material, there is also a statistical statement of the growth of the application of probation in the State.

In a book so full of merit as to opportuneness, thoroughness and analytical qualities a few suggestions are perhaps even more justifiable than in a work of fundamental weaknesses. It would seem, for example, that a chapter presenting the most important phases of the work in a continuous story-like form, comprehensible to the ordinary layman, would have increased considerably the reading circle of the book, and made it available as propaganda material. In the statistical appendix several improvements could be made. In Table 1, for example, the totals for any year of all persons are not indicated; in Tables 2, and especially 3, the development by years is not clearly presented; in Table 3 it would be very interesting to show the change in the relative percentages of "improved," etc. The gaps in the tables are not satisfactorily explained, and in Table 6, giving the number of probation officers holding appointments, the totalling of the individual years is a decided statistical fallacy. Such faults are, however, of vanishing importance, compared with the immense usefulness of the work.

The manual may be had by all interested persons on application to the State Probation Commission, at the Capitol, Albany. N. Y. P. K.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

The Disgraceful Jails of Iowa.—Rev. Charles Parsons, of the Iowa Society for the Friendless, is on the warpath. He says that “the jails of Iowa have been condemned and relegated to the junk pile many times, and yet they go on doing business at the old stand in the same old way, as if they were the most scientific institutions possible.

“I have spent enough time in the jails of our State during the past five years to almost entitle me to membership in the jail fraternity. If the jail has anything to be said to its credit, I have been unable to find it, though I have searched diligently for it in most of the jails within our borders.”

“One step in the program for betterment would be to avoid imprisonment through inability to pay a fine, but give the opportunity to pay the fine upon installments. This plan would save the culprit his employment if he has any. It would save his family humiliation and disgrace and help to save his self-respect.

“Another step in the line of progress would be to parole all offenders where the penalty is less than 30 days. If they fail to make a right use of the parole, give a work-house sentence.

“A third step in the program for progress would be the establishment of district custodial farms with work-house facilities for all prisoners serving 30 days or more. These district institutions must and should be under the management of the State.

“Farming, gardening and diversified industries should be followed most suited to the location of the institution, but such industries must be used which are most easily acquired. That the labor of short term men can be profitably utilized in such institutions has been demonstrated in a number of instances.

“The work-house of Minneapolis is a financial success with men whose average terms is only 17-1/2 days.

“That such labor can be used outside of prison walls with perfect safety is shown by the success of the prison camp which has been in operation for several months past, at Ames, and the hay pressing gangs that have been working from Fort Madison.

“During 1912, 3,739 inmates passed through the Minneapolis work-house. All the men worked in the open without walls, yet during the year there was only one escape.”

Warden Scott of New Hampshire Retires.—Many are the caustic criticisms directed at the Governor of New Hampshire, who recently removed Warden H. K. W. Scott of the State prison, and who appointed in his place a man of no equal prison experience. Warden Scott held office from 1905, and has served under five governors of the State, receiving his appointment from Governor McLane.

The Concord Evening Monitor has published a large number of scathing criticisms from the State press on the action of the Governor in removing Warden Scott.

Warden Scott, during his connection with the institution, has abolished the striped suit, lock step, downcast eye, dark cell and corporal punishment, which were practiced before his coming, and has instituted a night school. Instead of a candle each man now has an electric light in his cell, a grade system has been established and during the last summer a prison baseball league was organized, in order that the inmates might have outdoor exercise. Four teams were in the league and games were played Saturday afternoons.

During the last session of the Legislature Warden Scott worked for the passage of an act to provide for pecuniary assistance of prisoners and their families, whereby a certain per cent. of their earnings is laid aside. The warden had submitted to the Governor and council a plan for the carrying out of this act, which went into effect September 1, but as yet no action has been taken.

Charges preferred against him by Rev. Claudius Byrne, a former chaplain of the prison, were investigated by Legislative committees and proved groundless.

Warden Scott says that for the present he will remain in Concord, N. H., as his two sons are attending school.

Sterilization Law Unconstitutional in New Jersey.—Upon the grounds that she was denied the equal protection of the laws to which, under the constitution of the United States, every person is entitled, the Supreme Court of New Jersey, in an opinion by Justice Garrison, has set aside the order of the Board of Examiners of feeble minded, criminals, Epileptics and other defectives providing for the operation of salpingetomy upon Alice Smith, an inmate of the State Village for Epileptics.

In reaching this conclusion, Justice Garrison holds that without regard to the power of the State to subject its citizens to surgical operations that shall render procreation by them impossible, the statute creating the Sterilization Commission is invalid because it denied to the victims of the law the constitutional protection to which they are entitled.

In the syllabus of the opinion Justice Garrison holds that the artificial regulation of the welfare of society by means of surgical operations for the prevention of procreation, being based upon the suppression of the personal liberty of individuals, must be accomplished, if at all, by a statute that does not deny to the persons thus injuriously affected the equal protection of the laws guaranteed by the fourteenth amendment to the constitution of the United States.

Commenting on this decision, the Springfield Republican says editorially:

It is constitutional to sterilize defectives and criminals in the State of Washington, but it is unconstitutional to sterilize them in New Jersey. The United States Supreme Court will have to settle the question finally. To the lay mind it would seem that, if the State has power to break a man's neck by hanging, or to kill him by electricity, it would have the lesser power to subject him to a surgical operation, not in the least dangerous to life or limb, for the protection of society. The question of constitutionality aside, it is to be observed that sterilization involves various social questions whose seriousness should compel caution on the part of Legislatures in authorizing its practice in public institutions. It cannot be said that the problem has yet

been completely thought out and all the consequences fully considered. A recent article in a medical journal by one of the foremost advocates of sterilization was notable for the physician's frank admission that the objections to the operation, in their broadest significance, were very weighty. An operation that leaves the subject physically as fit as ever for the sex relationship, yet eliminates the danger of the conception of children, would have very deplorable moral and social results if it should become in the least common. It is a question that may easily involve large classes of people outside of prisons and asylums for the feeble-minded.

Farm Work in Minnesota.—From the near northwest comes the tale that twenty-five convicts are to be sent to the State lands near Walker, Minn., from the State penitentiary at Stillwater, to begin a system of intensive State farming and land reclamation, according to plans announced by the State Board of Control, which is compelled to find employment for more than two hundred men after January 1.

The new laws prevent the prison from taking contracts, and the shoe contract will accordingly be dropped.

The announcement of the new plan was made after the board had bought 160 acres adjoining the prison farm at Stillwater. This land will be farmed.

The board has other land adjoining State institutions and owns a large tract near the State sanatorium at Walker. The men prisoners will be sent there to clear the land and put in crops. Only the prisoners with best records will be sent to the farms. If the first detachment makes a success of the venture others will be sent out.

Alumni Day at a Reform School.—It does happen! This was what occurred at the Lyman School for Boys, Westboro, Massachusetts, on November 15, 1913.

The trustees of the School, Superintendent E. L. Coffeen, and Superintendent of the Parole Department, Walter A. Wheeler, sent letters to all of the 144 boys who have become twenty-one years of age the past year,

inviting them to a dinner and celebration in their honor at the school. About one fourth of them attended, and as many more sent letters of regret, containing remarks of warm appreciation. Some of the boys were in the Army and Navy; others had moved out of the State. For any one of the boys to attend, meant the sacrificing of a day's work and the cost of carfare.

The program included a football game between the present inmates and an outside team, a reunion of boys with old officers and teachers, an inspection of the new features of the school, which they had not seen in the last five or six years, and finally a banquet.

The usual speeches were made by the trustees, superintendents and invited guests, but the feature was the voluntary address in behalf of the boys made by one of their number. After thanking those present for what the school training and the friendly oversight of the parole board had done for him, he pledged the old boy's interests in doing whatever they could to help the younger brothers "make good" when released from the school.

It is intended to have a Home Coming Celebration every year, of which this was the successful experiment.

After Forty-Three Years.—Pardoned after forty-three years—the best years of his life—in a State penitentiary! Seeing the new world for the first time at sixty-six—such is the experience of John Taborn, pardoned by Governor Cox, of Ohio! Why, it's like coming to life again after half a century of death, says the Bay City (Mich.) Times.

When Taborn entered the State prison at Columbus in 1870, Grant was President. The telephone was unknown; electric lights were not dreamed of; there were not electric cars; skyscrapers in the largest cities were four or five-story buildings; Edison had not conceived the phonograph, while flying machines and wireless telegraphy were the dreams of madmen. The United States navy consisted of a few iron-clad and many wooden ships.

When he was pardoned, Taborn was taken about Columbus by Warden Thomas' secretary to see that he was not confused by the traffic and injured. He gazed in awe at the electric cars; he got lost in the revolving door of an office building, the height of which astonished him; he enjoyed his first ride in an elevator; he smoked a good cigar, but was puzzled by the safety

matches, which would not ignite when scratched on his trouser leg; he heard a phonograph and talked over the telephone for the first time in his life.

Despite his sixty-six years, Taborn is active and has keen sight, reading without glasses. In the prison he learned three trades—that of machinist, shoe-maker and molding—and plans to begin his last span of life as a machinist.

When he left the prison he had about \$100. The prisoners took up a collection and gave him \$30; the State turned over \$20 and Taborn had about \$50 himself. He was placed upon an electric car for a trip to Delaware, O., from which town he was sentenced for killing a man during a quarrel. Then he will go to his old home in Cass County, Michigan, and later to Hillsboro, N. C., where employment awaits him.

Social Surveys of Delinquency and Vice.—The Russell Sage Foundation Library publishes the following useful summary:

Chicago. Vice commission. Social evil in Chicago; a study of existing conditions, with recommendations. 399 p. Chicago, the Commission, 1911. (50 cents)

This report may be obtained through the American vigilance association, 156 Fifth Ave., N. Y.

Cincinnati (Ohio). Bureau of municipal research. (The) Juvenile court of Hamilton county. Cincinnati, O. The Bureau, 1912. (2 cents).

Elmira (N. Y.). Women's league for good government. Vice conditions in Elmira. 76 p. Elmira. The League, 1913.

Hartford (Conn.) Vice commission. Report, July, 1913. 90 p. Hartford, Conn. Woman suffrage association, 1913. (25 cents)

Kneeland, G. J. Commercialized prostitution in New York City. 334 p. N. Y. Century Co., 1913. (\$1.30 net)

Minneapolis. Vice commission. Report. 134 p. Minneapolis, Byron and Hillard, 1911. (40 cents)

New York (City). Committee of fourteen for the suppression of the Raines law hotels. Social evil in New York City; a study of law enforcement by the Research committee. 268 p. N. Y. Kellogg, 1910. (Out of print)

Philadelphia. Vice commission. Report. Philadelphia, The Commission. (40 cents)

This report may be obtained through the American vigilance association, 156 Fifth Ave., N. Y.

Portland (Oregon). Vice commission. Report, January, 1912. 216 p. Portland, The Commission, 1912. (Out of print)

Potter, Z. I. Delinquency, in Russell Sage Foundation, Department of surveys and exhibits. (The Newburgh survey, 1913. Also in Russell Sage Foundation. Department of surveys and exhibits. (The Topeka improvement survey, 1914. (in preparation)

Seligman, E. R. A., ed. Social evil, with special references to conditions existing in the City of New York: a report prepared in 1902 under the direction of the Committee of fifteen. 303 p. N. Y. Putnam, 1912, c 1902-12. (\$1.75 net)

Syracuse (N. Y.). Moral survey committee. Report on the social evil. Syracuse, N. Y. Moral survey committee, 1913. (40 cents)

The State Use Problem in New Jersey.—The Newark News has a plain and clear statement of the difficulty. New Jersey is finding in going over from the contract system to the State use plan.

The State Economy and Efficiency Commission is to-day investigating State prison conditions. The problems before it should concern every taxpayer, not to mention those who are interested in the great problem of prison reform. The need for their investigation was indicated yesterday by the report of the prison inspectors.

The prison of this State is operated under the law of 1814 as it has been amended from time to time. Its operation is based upon an obsolete idea of prisons and their purpose: the idea that prisons are places of confinement under the control of a keeper whose business is, as his title implies, to *keep* the prisoners.

To secure revenue for the State, and incidentally, to preserve the mental and bodily health of the prisoners, provision was made for hiring out their labor and for this purpose a supervisor was appointed. The State wards then fell under the jurisdiction of the keeper and supervisor, whose duties were regulated by statutes requiring interpretation by the courts.

Then a Board of Inspectors was appointed to see to it that the keeper kept the prisoners and that the supervisor kept the contracts for their labor; but the board has neither authority nor responsibility. Finally, a Labor Commission was appointed to devise a scheme for carrying out the State-use system of keeping the prisoners busy; an undertaking that it has proved unable, so far, to carry out.

Two years ago the Legislature decided to put an end to the exploitation of prison labor as fast as the existing contracts expired. The contracts bring

the State a revenue of practically \$100,000 a year, two-fifths of the cost of running the prison. By abolishing the contracts, the State forfeits this revenue without decreasing the expense of the prison.

Employment for the prisoners must be found, and the State is committed to the principle of employing them for State use, and, at the same time, of providing healthful employment under the honor system in the hope that it will prove reformatory as well as physically and mentally beneficial.

Immediately two difficulties arise. One is due to the fact that the State law divides without clearly defining authority and responsibility. The attorney-general has decided that the keeper is responsible for keeping the prisoners, and the keeper demands that whether they are kept in the Trenton prison, at the State road camps or farm, they shall be attended by a greater number of guards than the inspectors think either necessary or for their moral good. There is here a question of expense, of the extension of outside work, of the moral effect of modern prison methods.

The inspectors are hampered, also, in the expansion of the State farm and road making experiments by the supervisor, who is responsible for keeping the contracts for prison labor; for the supervisor may requisition as many of the prisoners as he wishes for contract proviso of the law, of course; and the keeper must deliver them.

The second difficulty is that existing plans for their work offer employment for only a small percentage of the prisoners. At the expiration of the contracts—very soon—the great majority will be forced into idleness unless the contracts are temporarily extended. To meet this situation, the inspectors confess they have already broken the law in order to keep the prisoners at work.

No plan has been devised, no equipment has been installed, for furnishing labor to this great majority of prisoners. For this there are several reasons, none greater, perhaps, than the fact that the Trenton prison is not fitted for this employment unless the congestion there can be relieved very materially. It might be necessary to make provision elsewhere for two-thirds of those now confined there.

The Legislature has failed to make appropriations for installing a plant where the prisoners can make articles used by the State because no definite plan has been presented to it upon which agreement could be reached. The working out of the transformation of prison methods contemplated by the law of 1911 must be evolutionary. It will take time, and, meanwhile, contracts, it would seem, must be temporarily extended, regrettable as it is. What is needed, first and foremost, however, is a clear definition and concentration of authority and responsibility.

The First Woman Commissioner of Correction. New York City.—Miss Katherine B. Davis, formerly superintendent of the New York State Reformatory for Women at Bedford, took office on January 1, 1913, in New York City as Corrections Commissioner. She has thus been appointed by Mayor Mitchell as the director of the Tombs, the penitentiary, workhouse, three branch workhouses, the Brooklyn city prison, the Queen's County jail, and a number of district prisons—enough of a task even for Miss Davis's recognized ability. She also has the construction to attend to of the city reformatory for misdemeanants. She has associated with her as deputy commissioner, Burdette G. Lewis, a "social worker at City Hall." Heartiest congratulations are being extended to the new heads of the Department of Correction. The readers of the "Delinquent" know Miss Davis well already.

"Was it as big as my fist?" asked the judge, concerning a stone which was responsible for a broken window.

"It ban bigger," replied the Swedish witness.

"Was it as large as my two fists?"

"It ban bigger."

"Was it as big as my head?"

"It ban about as long," said the imperturbable Swede, "but not so thick."

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Sworn to and subscribed before me this 30th day of September, 1913.

CHARLES D. IMMEN, JR., Notary Public No. 2. New York County.

My Commission expires March 31, 1914.

*** END OF THE PROJECT GUTENBERG EBOOK THE
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